FILED
AUG 06 2026
FRESNO COUNTY CLERK
BY: _____ DEPUTY

RESOLUTION NO. 26-46

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF FIREBAUGH RESCINDING RESOLUTION NO. 26-35, CALLING AN ELECTION IN THE CITY OF FIREBAUGH TO BE CONSOLIDATED WITH THE CITY'S NEXT GENERAL MUNICIPAL ELECTION ON NOVEMBER 3, 2026 AND SUBMITTING TO THE ELECTORS A BALLOT MEASURE TO IMPOSE A SPECIAL PARCEL TAX FOR FIRE AND EMERGENCY RESPONSE BY ADDING CHAPTER 11.5 (SPECIAL FIRE AND EMERGENCY RESPONSE TAX) TO THE FIREBAUGH MUNICIPAL CODE, ESTABLISHING THE POLICIES AND PROCEDURES FOR SUCH AN ELECTION, REQUESTING THAT FRESNO COUNTY PROVIDE ELECTION SERVICES, AND DIRECTING THE CITY ATTORNEY TO PREPARE AN IMPARTIAL ANALYSIS

WHEREAS, on July 6, 2026, the City Council approved Resolution No. 26-35, which called an election in the City of Firebaugh to be consolidated with the next general municipal election on November 3, 2026, and submitted to the electors a ballot measure to impose a special parcel tax for fire and emergency response by adding Chapter 11.5 entitled "Special Fire and Emergency Response Tax" to the Firebaugh Municipal Code, in addition to establishing the policies and procedure for such election, requesting that the County of Fresno provide such election services, and directing the City Attorney to prepare an impartial analysis; and

WHEREAS, City staff transmitted Resolution No. 26-35 to the Fresno County Registrar of Voters, which requested revisions to such resolution, namely adding the phrase "shall a measure be adopted", requesting letter designations for the ballot measure, designating the Elections Official as the individual responsible for selecting the arguments to be included with the ballot materials, and authorizing the City Clerk and/or City Attorney to make any typographical, clerical, or non-substantive corrections to this resolution as may be deemed by the Fresno County Registrar of Voters; and

WHEREAS, the City Council desires to rescind Resolution No. 26-35 in its entirety, and replace such resolution with the instant resolution; and

WHEREAS, the City Council of the City of Firebaugh reiterates that protecting the public health, safety, and welfare of residents is among the City's most important responsibilities; and

WHEREAS, the Firebaugh Fire Department serves as the community's first responder for fires, medical emergencies, traffic collisions, rescues, natural disasters, and other emergencies requiring immediate response; and

WHEREAS, City of Firebaugh relies on the Fire Department to provide rapid emergency response when emergencies occur, including life-threatening medical incidents such as heart attacks and strokes, where minutes and seconds can make a critical difference; and

WHEREAS, the City Council finds that ensuring reliable emergency response services at all hours of the day and night is a core public safety function and essential to protecting lives, property, and the quality of life of the community; and

WHEREAS, the Firebaugh Fire Department has experienced increasing demand for service in recent years, including growth in emergency medical and fire response calls, while the costs of providing emergency services have continued to rise; and

WHEREAS, maintaining rapid and reliable emergency response requires sufficient personnel, equipment, training, vehicles, communications systems, and other public safety resources necessary to respond effectively when emergencies occur; and

WHEREAS, the City Council finds that additional funding is needed to help ensure firefighters and emergency medical personnel are available to respond to emergencies around the clock and to improve emergency response readiness throughout the community; and

WHEREAS, the City Council finds that establishing paid 24-hour, 7-day-per-week emergency response shift coverage would help improve the availability of emergency personnel, support timely emergency response, and enhance the Fire Department's ability to respond when residents need assistance; and

WHEREAS, the City Council further finds that additional funding is needed to maintain, repair, replace, and upgrade firefighting equipment, emergency medical equipment, rescue tools, vehicles, protective gear, communications systems, and other resources necessary to provide effective emergency response services; and

WHEREAS, without additional local funding, the City may be unable to maintain desired emergency response capabilities, implement paid 24-hour, 7-day-per-week emergency response shift coverage, replace aging equipment, or adequately address increasing demands for emergency services; and

WHEREAS, the City Council desires to establish a reliable, locally controlled source of funding dedicated exclusively to fire protection and emergency medical response services to help ensure prompt emergency response and public safety services for City of Firebaugh residents and businesses; and

WHEREAS, revenues generated by the proposed measure would be deposited into a dedicated special fund and used only for fire protection and emergency medical response purposes, including improving emergency response readiness, supporting paid 24-hour, 7-day-per-week emergency response shift coverage, maintaining equipment and vehicles, preparing for emergencies and natural disasters, and providing firefighter and EMT training; and

WHEREAS, the City Council finds that all funds generated by the proposed measure should remain under local control, be subject to independent oversight and financial audits, annual public reporting, and may not be taken by the State or used for purposes other than those approved by the voters; and

WHEREAS, Article XIIC, Section 2(d) of the California Constitution requires that any special tax, such as the Fire and Emergency Response Parcel Tax, must be approved by two-thirds of the voters voting on the issue; and

WHEREAS, the City Council desires to submit to the voters a measure to provide dedicated local funding to help ensure fast, reliable emergency response services for the City of Firebaugh; and

WHEREAS, November 3, 2026, is the date of the statewide general election; and

WHEREAS, the City Council believes that it is in the best interests of the City of Firebaugh to submit the proposed Special Fire and Emergency Response Parcel Tax to the voters of the City of Firebaugh.

NOW, THEREFORE, BE IT RESOLVED by the City Council of the City of Firebaugh, as follows:

Section 1. The City Council of the City of Firebaugh hereby finds and determines that the foregoing recitals are true and correct.

Section 2. The City Council of the City of Firebaugh hereby rescinds Resolution 26-35 in its entirety.

Section 3. The City Council of the City of Firebaugh hereby calls an election at which it shall submit to the qualified voters of the City of Firebaugh a measure that, if approved, would impose a special parcel tax to fund fire and emergency services in the City. This measure shall be designated by letter by the Fresno County Registrar

of Voters, and the City Council of the City of Firebaugh hereby requests the Fresno County Registrar of Voters assign a letter designation for the measure, and hereby requests letter "F" or "E", if available.

Section 4. The ballot language for the proposed measure shall be as follows:

To ensure 24/7 response to fires and medical emergencies such as heart attacks, strokes, and car accidents; hire/train firefighters/EMTs; upgrade safety equipment, vehicles/life-saving rescue tools, shall a measure be adopted to enact a $95/year parcel tax for single family homes and specified amounts for multifamily, commercial, agricultural, and industrial parcels, providing approximately $240,000/year until ended by voters; requiring independent oversight; funds used only for Firebaugh Fire Department response?	YES
	NO

Section 5. The proposed measure to be submitted to the voters is more completely described in the ordinance attached hereto as Exhibit "A", which is incorporated herein by this reference. The City Council hereby approves the proposed ordinance, in the form thereof, and its submission to the voters of the City at the November 3, 2026 election. The full text of the measure shall be printed in the ballot materials and be available for inspection in the City Clerk's office.

Section 6. Pursuant to Section 10400 et seq. of the California Elections Code, the Fresno County Board of Supervisors is requested to consolidate the election with other elections held on the same day in the same territory or in the territory that is part of the same.

Section 7. The Fresno County Board of Supervisors is authorized to canvass the returns of the election pursuant to Section 10411 of the California Elections Code.

Section 8. The Fresno County Board of Supervisors is requested to permit the Fresno County Registrar of Voters to render all services specified in Section 10418 of the California Elections Code relating to the election, for which services the City agrees to reimburse the County of Fresno, in accordance with current County pro-rations and allocation procedures.

Section 9. The City Clerk shall file a certified copy of this resolution with the Fresno County Board of Supervisors and Fresno County Registrar of Voters.

Section 10. The City Attorney shall prepare an impartial analysis of the measure. Any person or persons may file an argument either for or against the ballot measure. An argument for or against the measure shall not exceed 300 words in length. If more than one argument is submitted for the measure, or more than one argument against the measure, the Elections Official shall select the argument to be included with the ballot materials. Rebuttal arguments shall be permitted pursuant to applicable law.

Section 11. The City Clerk and/or City Attorney are authorized to make any typographical, clerical, non-substantive corrections to this resolution as may be deemed necessary by the Fresno County Registrar of Voters.

PASSED, APPROVED, and ADOPTED on August 3, 2026, by the following vote:

AYES: **Jenkins, Perez, Lopez, Renteria, Valdez**

NOES:

ABSTAIN:

ABSENT:

APPROVED:

Freddy Valdez, Mayor

ATTEST:

Rita Lozano, City Clerk